

slaves, taxation, war, and property. It later influenced the codification of laws across South Asia.

See also: The *Arthashastra* and the *Manusmriti* 35 ■ The Koran 54–57

THE TRANSPORTATION ACT 1717

Largely to resolve the lack of space in UK prisons, the transportation of criminals to North America was introduced in 1717 by an Act of Parliament. Convicts were bound by a contract to work without pay for 7 years for a lesser offense and 14 or more years for serious crimes. After America became independent in 1776, Britain sent criminals to Australia instead.

See also: The Poor Laws 88–91

AIR LAW 1784

In 1783, the Montgolfier brothers launched the first manned hot-air balloon over Paris, France—an innovation that raised questions about the sovereignty of air space. A police ordinance banned balloon flights over Paris without a special permit. Belgium and Germany soon passed similar laws, marking the start of specialized aviation law.

See also: The Hague Conventions 174–177

THE PENAL SETTLEMENT OF AUSTRALIA 1788

In January 1788, 736 convicts transported from Britain arrived in Botany Bay, Australia, creating the continent's first penal colony. As transportation was less costly than

imprisonment in Britain, it was frequently imposed even for minor crimes. In the next 80 years, over 160,000 criminals were transported to Australia, helping Britain populate its new colony but severely depleting the Indigenous Australian population as a result of disease, conflict, and land seizures. Increasing numbers of new settlers, who arrived as the colony prospered, objected to the transportation of criminals, and the practice was ended in 1868.

See also: The Treaty of Tordesillas 86–87 ■ The Poor Laws 88–91

THE TREATY OF WAITANGI 1840

As more British migrants arrived in New Zealand in the 1830s, the British government recognized the need to make a treaty with Māori chiefs to protect British interests and secure land rights. It was drafted and translated into Māori (but with discrepancies that obscured the extent of Māori rights ceded). The treaty gave the British sovereignty over New Zealand and the exclusive right to buy Māori lands. In return, the Māori were guaranteed rights of ownership of all their lands and gained the rights and privileges of British subjects.

See also: The Treaty of Tordesillas 86–87 ■ The St. Catherine's Milling case 169

THE BERN TREATY 1874

Postal systems expanded in the 18th and 19th century, but the lack of standard agreements controlling international mail impeded trade. In 1874, at a conference convened

by the Swiss government, delegates from 22 countries adopted the Treaty of Bern, which came into force in 1875. The treaty established the General Postal Union and created a single postal district across 19 European countries, plus the US and Egypt, allowing the exchange of mail under a uniform framework of rules and regulations. Membership grew to 55 within the first 10 years. In 1878, the General Postal Union was renamed the Universal Postal Union and the treaty became the Universal Postal Convention. The treaty paved the way for future international agreements similarly based on the principle of reciprocity, such as the 1883 Paris Convention for the Protection of Industrial Property that included protection for patents and trademarks.

See also: The World Trade Organization 278–283 ■ The Open Internet Order 310–313

THE TRADE MARKS REGISTRATION ACT 1875

The passing of the 1875 Trade Marks Registration Act created a system that, for the first time, allowed UK businesses to formally register and gain legal protection for their trademarks, preventing other companies from copying their product identity. The Act defined trademarks as devices, marks, or names of individuals or firms “printed in some particular and distinctive manner.” The first UK trademark to be registered (on January 1, 1876) was the distinctive red triangle of Bass Breweries.

See also: The Venetian Patent Statute 82–85 ■ The Statute of Anne 106–107 ■ The WIPO Copyright Treaty 286–287